

LETTER OF APPOINTMENT

Sep 20th, 2023

Mr. Gawtam C R
4, Rangarajulu Street,
Ayyavo Colony,
Aminjikarai,
Chennai 600029

Dear Gawtam,

With reference to your subsequent interactions throughout your internship, we are glad to appoint you to the Full time post of Associate Project Engineer in our Organization with effect from (Can be discussed mutually) subject to the following terms & conditions. This letter of appointment supersedes all other communications made to you prior to the date of issue of this appointment letter.

1. PLACE OF WORK

Your place of work will be #40, 36th Cross, 23rd Main, Jayanagar 4th T Block, Bangalore 560041 However, you may be required to work anywhere in India or overseas, if the Company so directs based on the exigencies of work.

2. EMOLUMENTS

Your total Compensation (Cost to the Company) will be INR 12,00,000 only per annum,

The breakup of emoluments is annexed herewith. Any tax liability arising will be appropriately deducted.

Please note that the salary structure of the Company may be altered/modified at the discretion of the management, having regards to market and business needs. Further, salary, allowances and all other payments / benefits will be governed by the Company's rules as well as statutory provisions in force from time to time and subject to deductions of appropriate taxes at source. Please also note that your remuneration package is strictly confidential between you and the Company and should be so maintained.

3. REPORTING

You would be reporting to Lead or Manager and/or to whosoever the Company deems fit to be your supervisor.

4. RESPONSIBILITIES

You will be required to carry out your duties and responsibilities effectively, to achieve the desired results which may include working late hours or on weekends.

5. LEAVE

You will be eligible for leave as per the prevailing leave policy.

6. NO SIMULTANEOUS EMPLOYMENT

Your position is a full time employment with the Company and you shall devote yourself exclusively to the business of the Company. You will not take up any other work for remuneration (Part-time or otherwise) or work in advisory capacity or be interested directly or indirectly (except as shareholder or debenture holder) in any other trade or business during the employment with the Company. To help you wind down any commitments in this regard, this clause will be fully applicable starting July 1, 2018.

7. BUSINESS CONDUCT

- a) You will be governed by the Company's policies, rules and regulations that may be promulgated from time to time.
- b) During the course of your employment with the Company, you will not solicit business of any nature, either directly or indirectly, for yourself, or for any other party, from the Company's stakeholders including clients, suppliers, contractors etc.
- c) The Company values honesty of intent and purpose in all business transactions with its stakeholders including employees, customers, suppliers, contractors, government agencies, public bodies, media and associates. Any violation to the Company's Code of Conduct will be treated seriously and considered as a breach of contract.

8. POSTAL ADDRESS

You will keep the Company informed of the postal address along with contact number for communication including the changes that may occur during your period of employment with the Company. Any communication sent to your last recorded address will be deemed to have been duly served upon you.

9. WORKING HOURS

Company official working hours are 8:00am-5:00pm or 9:00am-6:00pm, Monday through Friday. Working hours are subject to change, depending on the requirements of the Company. Saturday may be considered a workday depending on work requirements. You will be expected to devote as much time as required for proper discharge of your duties in accordance with the entrusted responsibilities of your position including working beyond normal working hours.

10. AUTHENTICITY OF INFORMATION

This appointment is made on the basis of information provided by you in the application and also at the time of interview. Original copies of your certificates, testimonials and previous employment records should be submitted along with the photocopies for verification. If any declarations given by you to the Company prove to be false or if you are found to have willfully suppressed any material information, you will be liable to be removed from service without any notice.

11. TERMINATION

Both the Company and you have the right to terminate this letter of appointment for convenience subject to the following conditions:

- a. You shall provide ninety (90) days written notice if you decide to terminate your employment with the Company. The Company may terminate your employment by giving ninety (90) days written notice or salary in lieu of such notice.
- b. Notwithstanding anything contained herein, the Company may in its sole discretion, immediately terminate you for breach of contract, misconduct or any disciplinary reasons. Without limiting the applicability of the foregoing, you acknowledge that breach of any obligation shall entitle the Company to immediately terminate this letter of Appointment. If the Company believes it is necessary as a party of any disciplinary proceedings or in order to investigate a complaint against you, the Company may suspend you on full pay for so long as it may think fit without prejudice to the Company's right to subsequently terminate this letter of Appointment on the same or any other ground.
- c. On termination, you shall be entitled to receive any accrued but unpaid salary, benefits and all other payments on the next regularly scheduled payroll date or as required by applicable law. Provided that, the Company shall have the right to deduct any outstanding amounts owed by you to the Company and you expressly authorize the Company to deduct such outstanding from your full and final settlement.
- d. Privilege leave balance, if any, will be encashed as per the leave policy in force at the time of exit.
- e. On the termination of your employment, you shall immediately deliver to the Company, all materials and equipment of the Company or any other property relating to the Company or its business which are in your possession. For the purpose of clarity, you shall vacate any accommodation provided by the Company, return computing equipment, mobile phones, credit cards or any other Company provided material or equipment.
- f. During any period of notice of termination, whether such notice has been given by the Company or by you, the Company shall have the right to assign or reduce your duties. Further, the Company may at its discretion relieve you from such date as it may deem fit even before the expiry of the notice period and it is not bound to give any reason thereof. The Company shall be entitled to prevent your access to the premises, and/or prevent you from discussing affairs with the Company's employees, agents, customers or prospective customers. During any notice period of termination, you undertake to co-operate with the Company or any person nominated by it to affect a smooth and orderly transition of your duties and responsibility in a manner as the Company may require. At all times during any period of notice of termination served in accordance hereunder, you shall continue to be bound by the same obligations as were owed to the Company prior to the commencement of the notice period and the Company shall continue to pay you in accordance with your entitlements under this letter of appointment.

12. SUMMARY DISMISSAL

The Company may dismiss the Employee without notice if:

- a. S/He does not perform the duties assigned to him/her under this Agreement satisfactorily;
- b. S/He breaches any of the terms of this Agreement or a breach of his/her material obligations under this Agreement which is not cured within thirty (30) days following the Employee's receipt of written notice thereof from the Company;
- c. S/He is guilty of dishonesty, serious neglect or gross misconduct in the course of his/her employment that is detrimental to the pecuniary interests, reputation or goodwill of the Company, provided the same is not rectified within 30 days of the occurrence of such event coming to the notice of the Company;
- d. S/He expressly or by implication repudiates this Agreement;

- e. S/He acts in such a way (whether or not in the course of his/her employment) as to bring the Company, its parent, or its subsidiaries into disrepute;
- f. S/He is convicted of a criminal offense, for which s/he is convicted and proven guilty;
- g. S/He is convicted of or charged with an offense involving moral turpitude, other than minor traffic violations;
- h. S/he has suffered a disability, mental or physical, due to which the s/he cannot carry out his responsibilities as defined under this Agreement; or
- i. S/he breaches provisions pertaining to confidentiality, non-compete and intellectual property as detailed in this Agreement; and
- j. S/he does not meet the requisite performance standards/levels, and continues to perform below such standards/levels after being put through the Company's 'Performance Improvement Plan' ('PIP'), as amended from time to time, or rejects participation, either in part, or fully, in any such PIP that the Company has designated for his/her participation.

13. JURISDICTION

All disputes arising out of this letter of appointment shall be subject to the exclusive jurisdiction of the courts in Bengaluru, India.

14. INTELLECTUAL PROPERTY

Copyright or other intellectual property may subsist in the work that is expected to be generated by the employee during his/her duties under the agreement. Any such intellectual property rights shall vest absolutely in the Company, and the Employee undertakes to execute any necessary documents, and do whatever else may be necessary to secure those rights, including a deed of assignment of any intellectual property substantially in the form attached hereto as Schedule II.

15. CONFIDENTIALITY

The Employee shall execute a Non-Disclosure & Non-Compete Agreement with the Company in the form attached hereto as Schedule III and agrees to be bound by the terms thereof as a part of his/her employment with the Company.

16. IT POLICY

- a. Prohibited Use - Company email system shall not be used for the creation or distribution of any disruptive or offensive messages, including offensive comments about race, gender, hair color, disabilities, age, sexual orientation, pornography, religious beliefs and practice, political beliefs, or national origin. Employees who receive any emails with this content from any employee should report the matter to their supervisor immediately. Employees may not forward any documents to their personal accounts. All Auto-forward messages should be removed from the personal profiles.
- b. Personal Use - Using a reasonable amount of company resources for personal emails is acceptable, but non-work related email shall be saved in a separate folder from work related email. Sending non-business related multimedia, pictures larger than ½ MB etc., chain letters or joke emails from a company email account is prohibited. Mass mailings from company emails shall be approved by the Director - IT before sending. These restrictions also apply to the forwarding of mail received by an employee as well.

The above terms and conditions are subject to changes from time to time and the same would be communicated to you in writing. Please sign the copy of this letter, as a token of acceptance of your appointment on the terms and conditions mentioned above.

We welcome you aboard and wish you a pleasant, fruitful and mutually beneficial association with the Company.

Warm Regards,

For Systemantics India Pvt Ltd

G.Jagannath Raju

Director

I agree to abide by the terms and conditions mentioned in the letter of appointment

Name :

Date :

Signature :

Place :

Annexure A:
Salary breakup

Salary components		Yearly	Monthly
Basic Salary	50% of FP	600,000	50,000
House Rent Allowance	40% of Basic	240,000	20,000
Conveyance Allowance	Fixed	19,200	1,600
Medical Expenses	Fixed	15,000	1,250
Special Allowances		269,208	22,434
Gross salary		1,143,408	95,284
Professional Tax	Fixed	2,400	200
Employee PF contribution	Fixed	21,600	1,800
Total deduction		24,000	2,000
Total take home salary (Excluding TDS)		1,119,408	93,284
Medical Insurance Premium		6,132	511
Gratuity provision	4.81% of Basic	28,860	2,405
Employer PF contribution	Fixed	21,600	1,800
Total Benefits		56,592	
Fixed pay		1,200,000	
Cost To Company		1,200,000	

For Systemantics India Pvt. Ltd.

G.Jagannath Raju

Director

Signature.....

Name.....

Date of reporting.....

Annexure B: Joining checklist

- Copies of all educational certificates.
- Copies of relieving letter(s)/experience certificate(s), appointment letter(s), 3 months'
- Salary slip from previous employer.
- Identity Proof (Passport, Driver's License, PAN Card, Ration Card, Voter's ID Card).
- Address Proof (any utility bill - electricity, telephone, credit card).
- Two passport sized photographs.
- Copies of the passport sheets (All sheets wherever any entries were made, particularly the following:
 - ✓ Passport number, date and place of issue
 - ✓ Due date of expiry of the passport
 - ✓ Name, date of birth, photograph, address
 - ✓ Stamps/entries reg. issue of visa/work permit/entry permit by any country
 - ✓ (including refusals)

Note:

Scan of all original documents should be zipped and mail over prior to joining

Also, please share some personal photos and information on hobbies of you and your family which we can share with our Systemantics team here.